

Dilip vs Smt. Ruby on 9 April, 2021

IN THE COURT OF SHRI ANUJ AGRAWAL, ADDITIONAL
SESSIONS JUDGE-5, SOUTH EAST DISTRICT, SAKET
COURTS, NEW DELHI
CRIMINAL APPEAL NO. 355 of 2019

IN THE MATTER OF:

1. Dilip,
S/o Sh Jai Singh
2. Smt Shakuntla,
W/o Sh Jai Singh
3. Jai Singh,
S/o Sh Nek Ram
4. Yogesh,
S/o Sh Jai Singh,
5. Smt Mamta,
W/o Sh Yogesh
6. Smt Jyoti,
D/o Sh Jai Singh

All resident of
House No.2080, Banshi Gaura, Mainpuri, UP

.....Appellants

Versus

Smt. Ruby,
W/o Sh. Dilip,
R/o H. No. L-140/A, Saurabh Vihar,

CA No. 355/2019

Dalip vs. Ruby Page No. 1 of 6

ANUJ

Digitally signed by
ANUJ AGRAWAL

AGRAWAL

Date: 2021.04.09
13:20:29 +0530
Jaitpur, Badarpur, New Delhi.

.....Respondent

Instituted on : 05.07.2019
Reserved on : 18.03.2021
Pronounced on : 09.04.2021

JUDGMENT

1. Vide this judgment, I shall dispose of the instant appeal filed by the appellants challenging the exparte judgment dated 24.11.2018, passed by the learned Metropolitan Magistrate-03, Mahila

Court, South-East District, Saket Courts, New Delhi in CC No. 6730/2018 titled as Ruby vs. Dilip & Ors, filed under section 12 of the Protection of Women from Domestic Violence Act, 2005 (herein after referred to as 'the Act').

2. Vide impugned judgment, Ld Trial Court granted various reliefs to the respondent i.e. protection order u/s 18 of the Act, rent in lieu of alternate accommodation u/s 19 of the Act, Monetary relief in the nature of maintenance u/s 20 of the Act and compensation order u/s 22 of the Act.

3. Brief facts may be taken note of: A complaint under section 12 of Domestic Violence Act was filed by respondent/wife Ruby with the averments that she is legally wedded wife of the appellant no.1 and the marriage between the parties held on 18.05.2014 as per Hindu rites and ceremonies. Parties were blessed with one daughter on 16.01.2016. As per respondent, she was subjected to domestic violence ANUJ ANUJ AGRAWAL AGRAWAL Date: 2021.04.09 13:20:38 +0530 by appellant no.1 and his family members i.e. mother, father, two sisters and brother of appellant no.1 who have been arrayed as other appellants in the instant appeal.

4. Trial Court record reveals that vide order dated 04.09.2018, Ld Trial Court summoned all the appellants herein for 08.10.2018. Trial Court record further reveals that on 08.10.2018, it was noted by Ld Trial Court that none has appeared on behalf of appellants despite service of summons and adjourned the matter for their appearance / filing of reply / further proceedings for 18.10.2018.

5. Record further transpires that on 18.10.2018, Ld Trial court observed that none has appeared on behalf of appellants despite service of notice nor any reply has been filed. It was further observed that on the last date of hearing also, none was present on behalf of appellants. Accordingly, their right to file reply was closed by Ld Trial Court and they were directed to be proceeded ex parte.

6. Thereafter, respondent/wife led exparte evidence and examined herself, her parents as CW1, CW2 & CW3 respectively. After conclusion of exparte evidence and after hearing final arguments, the impugned judgment was passed by Ld Trial Court granting various reliefs to the respondent.

7. Appellants are aggrieved with the said ex parte judgment and have assailed the same. The sum and substances of the grounds taken by appellants in the present appeal are given below :-

i) That Ld Trial Court passed the impugned judgment ANUJ ANUJ AGRAWAL AGRAWAL Date: 2021.04.09 13:20:47 +0530 against the facts and circumstances of the case as well as against the material available on record;

ii) That Ld Trial Court passed the impugned judgment in hasty manner based on conjectures and surmises and without appreciation of facts and is one sided;

iii) That the appellants were never served with the notice/summons and that the service report is not supported with any statement of any witness corroborating the service upon appellants;

iv) That respondent intentionally mentioned incorrect address of appellants in the complaint;

v) That it is settled law that each and every case is to be decided on its merit after affording ample opportunities to the parties;

vi) That non-appearance of appellants was neither willful nor intentional.

8. Ld counsel for appellants has argued on the line of grounds as taken in the instant petition. On the strength of these arguments, appellants seek setting aside of impugned order.

9. Per contra, Ld. Counsel for respondent has vehemently argued that there is no infirmity in impugned judgment and Ld. Trial Court has taken a reasoned view while passing the impugned judgment. He has further argued that the address as mentioned in the complaint is the correct address and appellants were duly served with the summons.

10. I have heard rival contentions and perused the record.

11. At the outset, I may mention that the present appeal was filed by appellants with delay. However, after hearing parties, delay in ANUJ ANUJ AGRAWAL AGRAWAL Date: 2021.04.09 13:20:56 +0530 filing the present appeal was condoned by this court vide its order dated 24.09.2020. Therefore, the present appeal is being taken up for disposal on merit.

12. The contention of the appellants is that they were never served with any notice or summon in said complaint case and therefore, Ld Trial Court erred in law by proceeding exparte against them. As per appellants, appellant no.1 came to know about the impugned judgment dated 24.11.2018 on 20.05.2019 when he appeared before the court of Ms Archana Beniwal, Ld MM, South-East in execution proceedings.

13. For appreciating the rival contentions, the service report on the notice / summons issued to the appellants in terms of order dated 04.09.2018 requires to be meticulously perused. Perusal of the report reveals that all the summons/notices were reported as served upon the appellants by the concerned Process Server with the following report :-

" , . "

14. Therefore, it is evident that the report of concerned Process Server is as vague as it could be. Neither the name nor the particulars of persons upon whom, the summons/notices were purportedly served have been mentioned in the said report.

15. Be that as it may, careful perusal of said reports also reveals that all the notices have been received by one individual who has signed the receipt of acknowledgement with initial 'R' and mobile ANUJ ANUJ AGRAWAL AGRAWAL Date: 2021.04.09 13:21:08 +0530 number 79827110482. However, neither the identity of said receiver has been disclosed in the said reports

nor same can be ascertained from the material available on record.

15. Therefore, seen in the light of aforesaid circumstances, I am of the view that Ld Trial Court acted in haste by relying upon said vague reports. In my opinion, Ld Trial Court should have either examined the concerned Process Server to satisfy itself about the sanctity of the report or should have directed for issuance of process afresh. Having failed to do so, Ld Trial Court erred in law by treating the appellants herein as 'served' and by proceeding ex parte against them.

16. Accordingly, the instant appeal is allowed and the impugned judgment dated 24.11.2018 is set aside and it is directed that the Ld. Trial Court shall dispose of the complaint case bearing CT No.6730/2018 titled as Ruby Vs Dilip & Ors filed by the complainant under section 12 of the Protection of Women from Domestic Violence Act, 2005 afresh in accordance with law. Parties are directed to appear before Ld. Trial Court on 26.04.2021 at 02.00 pm.

17. TCR be sent back to Ld Trial Court along with copy of this judgment.

18. Appeal file be consigned to record room after due compliance. ANUJ ANUJ AGRAWAL AGRAWAL Date: 2021.04.09 13:21:19 +0530 Announced in the open (Anuj Agrawal) court on 9th April, 2021 Additional Sessions Judge-05, South East, Saket Courts, New Delhi